Harris County District Court

Cause No. 2024-CV-0007

Antonio Evans, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	July 13, 2024
Plaintiff's counsel:	Samuel Potts, Villa & Dawson LLP

PARTIES

Plaintiff Antonio Evans is an individual residing in Texas who was the driver of a passenger vehcile involevd in the collision decsribed below. Defendant is an automobile insurance company authorized to transact business in the State of Texas, which issued the liability and uninsured/underinsured motorist coverage applicable to the at-fault driver's vehicle and to Plaintiff's claim.

FACTS

On January 4, 2024, Plaintiff was lawfully driving on a public roadway in Sugar Land, Texas. The at-fault driver, insured under a policy issued by Defendant, attempted to change lanes without first confirming that the lane was clear. The insured vehicle moved into Plaintiff's lane and sideswiped Plaintiff's vehicle along its driver side, forcing it toward the shoulder. Plaintiff braced against the steering wheel to regain control. Plaintiff did not contribute to the collision. After the accident, Plaintiff reported the claim to Defendant and provided the information requested, including the insured's policy details and a description of the damage.

NEGLIGENCE

The at-fault driver owed a duty to other motorsits to maintain a proper lookout, to signal, and to change lanes only when it could be done safely. The insured breached that duty by changing lanes without yielding to traffic already occupying the lane, and this breach directly caused the collision. Defendant, as the insurer, is liable for its insured's negligence within the coverage limits of the ploicy and is obligated under Texas law and the terms of its policy to pay covered damages. Defendant has also failed to make a reasonable settlement offer after liability became reasonably clear, in violation of Texas Insurance Code Chapter 541 and Chapter 542.

DAMAGES

As a direct result of the collision, Plaintiff suffered a fracture of the wrist that required medical evaluation, immobilization, and ongoing treatment. Plaintiff has incurred medical expenses, lost wages from time away from work, and pain, mental anguish, and diminished ability to perform daily activities. Plaintiff expects these injuries to continue to affect Plaintiff's life for some time. Plaintiff therefore sekes actual damages in the amount of $71,000.00, together with pre-judgment and post-judgment interest, court costs, and all other relief to which Plaintiff may be entitled.